

provisions, as noted above, and that they permeate the entire purpose of the agreement. The issues cannot be remedied by severing the offending provisions.

Accordingly, the Court denies the motion.

17. 9:00 AM CASE NUMBER: C25-01575

CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.

***HEARING ON MOTION IN RE: RECONSIDERATION OF DENIAL OF CMG MORTGAGE, INC.'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**

FILED BY: CMG MORTGAGE, INC.

TENTATIVE RULING:

Continued by the Court to May 20, 2026. The case management conference set for May 15, 2026, is also continued to May 20, 2026.

18. 9:00 AM CASE NUMBER: N25-2436

CASE NAME: PETITION OF: SONJA TYESI

HEARING ON PETITION IN RE: PETITION TO COMPEL PRODUCTION OF RECORDS

FILED BY:

TENTATIVE RULING:

Summary:

The hearing on Petitioner Sonja Tyesi's Motion to Compel Production of Records is continued to June 3, 2026 at 9:00 a.m. due to untimely service. No appearance is required on April 22, 2026.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." Furthermore, "if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California" (Emphasis added). Applied here, in order for Petitioner's service to be timely, Respondent should have been served 16 court days plus five calendar days before April 22, 2026. That date is March 25, 2026. Petitioner's proof of service filed on April 15, 2026 demonstrates that Petitioner served Respondent Diablo Valley Ranch's agent for service of process by mail on April 15, 2026. The Court finds that service is untimely. The Court continues this hearing to June 3, 2026 in Department 16 at 9:00 a.m. in order to permit Respondents to file an opposition.

The Clerk of the Court is ordered to serve a copy of this ruling to Petitioner and to agent for service of process for Respondent Diablo Valley Ranch. No appearance is required at the hearing on April 22, 2026.